

OVERVIEW

In order to be eligible for child care benefits, clients or adult group members must comply with the Child Development and Care (CDC) program rules.

Clients or adult group members, who are found to be in violation of the identified program rules, may serve a six-month, twelve-month or lifetime disqualification.

RULE VIOLATIONS

Rule violations include failure to:

- Provide accurate eligibility information.
- Verify eligibility information.
- Cooperate with a Department investigation.
- Report changes timely and accurately.

Rule violations shall be considered intentional and result in a disqualification if established by:

- A court.
- An administrative law judge (ALJ).
- The client or adult group member's signed disqualification form.

DISQUALIFICATION PROCESS

When it is determined that a client or adult group member intentionally violated a program rule, a referral should be submitted to the Office of Inspector General (OIG). If the OIG investigation determines an intentional program violation was committed, a disqualification referral and the Investigation Closure Packet will be sent to CDC policy for review.

CDC Policy will impose the appropriate disqualification. Disqualification periods will be:

- Six months for the first occurrence.
- Twelve months for the second occurrence.
- Lifetime for the third occurrence.
- Lifetime for welfare fraud conviction.

If the CDC case is active at the time the disqualification is imposed, Bridges will send the DHS-1605, Notice of Case Action, giving timely notice to close the case.

The client or adult group member will be ineligible for the entire disqualification period unless good cause is determined.

The disqualified client makes the entire group ineligible for CDC.

If the CDC case is closed at the time the disqualification is imposed, the disqualification period would not be applied until the client or adult group member reapplies for CDC benefits.

The client CDC Non-coop/Sanction information screen can be viewed in Bridges Data Collection.

NOTIFICATION PROCESS

The local office recoupment specialist (RS) will be required to send the DHS-4357, Intentional Program Violation Client Notice, with all standard recoupment information. OIG will provide notice of the disqualification.

GOOD CAUSE

CDC Policy may grant good cause when:

- The disqualification was entered incorrectly.
- An ALJ determines that one parent/substitute parent in a two-parent household is not responsible and the parent/substitute parent with the disqualification leaves the home.

If a CDC case closes as a result of a disqualification and a good cause determination is made, a task and reminder will be sent to the specialist. The specialist will need to reinstate the case.

If the case is pending closure when the good cause determination is made, the specialist will need to run eligibility determination and benefit calculation (EDBC) and certify the case for the disqualification period.

If a CDC case closes as a result of a disqualification and the client or adult group member re-applies and is determined to have good cause, eligibility may need to be run for the previous months.

LEGAL BASE

The Child Care and Development Block Grant (CCDBG) Act (42 USC § 9858 et seq.), as amended by the CCDBG Act of 2014 (Pub. L. 113-186).

45 CFR Parts 98 and 99.

Social Security Act, as amended 2016.

P.A. 368 of 1978 part 124.

P.A. 116 of 1973, as amended 2018